

MASTER LOG — THE PID, THE ACTORS, THE FORM 29, THE 64G, THE LOCKOUT AND WHAT FOLLOWED

WC/2024/227 · Shepherd v Workers' Compensation Regulator · compiled 5 August 2026

■ **INTERNAL WORKING DOCUMENT. NOT FOR SERVICE AND NOT FOR DISCLOSURE.** Contains entries referable to a public interest disclosure (s 65 PID Act) and one restricted category. Nothing in this log is an allegation of coordination or improper purpose; entries are recorded in date order only.

PHASE 1 — THE STANDING CONDITION (2023)

Date / time	Event	Source · significance
6 Jun 2023	Communication book entry by the Appellant re verifying and updating doctors' on-call contact details; the page is removed by the Line Manager	Removal admitted — Form 24 ¶6. Contents not admitted (¶7). Item 18
16 Jun 2023	Appellant raises “No consultation of the team members or the department when making major changes”	Form 20 ¶28
18 Jul 2023	Stibbard: “removing everyone's access to the database”; directory updates restricted to the Telecommunications Coordinator role	Form 20 ¶22 — the operational change that drove complaint volume
7 Aug 2023	Grievance re the Line Manager's conduct, raising WHS concerns about unsafe rostering and fatigue. Not upheld; directed to continue reporting to her	Reese acknowledges a rostering error — admitted , Form 24 ¶5
11 Aug 2023	Text to the Line Manager notifying intention to become Switchboard delegate	Sending admitted; characterised “not a formal notification” — Form 24 ¶18
31 Aug 2023	Full-time application, recording the delegate intention	Exhibit CS-3. Approved 27 Sep; commenced 16 Oct 2023
15 Nov 2023	Business case minutes	Item 18 of the Notice

PHASE 2 — THE PLEADED PERIOD (Feb–May 2024)

Date / time	Event	Source · significance
20 Feb 2024 11:24	COVID pandemic leave form 15480560 drafted; submitted 11:41:27	Exact timestamps from the myHR audit trail produced at Item 11
21 Feb 2024 12:23	Declined (Donovan-Taylor)	Item 11 audit trail
28 Feb 2024 06:07	Resubmitted	Item 11
29 Feb 2024 09:06	Declined a second time	Item 11
29 Feb 2024 11:07	Resubmitted; approved 11:21:03 on the same supporting evidence	Item 11. Manager + Delegate approved by Reese 1 Mar 16:05:08
17–18 Mar 2024	Consecutive shifts ending 23:00 and recommencing 06:00 — a 7-hour break , against the 10-hour minimum (8 only by written agreement)	Both admitted — Form 24 ¶1 and ¶3. Stressor 3
19 Mar 2024	Fatigue leave refused in reliance on the 8-hour agreement signed 17 Jun 2020; personal leave exhausted instead	Form 20 ¶40. Item 15 leave ledger
3 May 2024	Payroll (E Grant) instructs the Line Manager to “submit an AVAC to correct these shifts”	Admitted — Form 24 ¶40
9 May 2024	Line Manager's MASPER email — a doctor's hours “not provided on the rosters” and the contact number “switched off”	Exhibit CS-1. Form 20 ¶27 — a roster problem answered by changing call handling

PHASE 3 — ■ THE PID AND THE SHARED HR MAILBOX (13–28 May 2024)

Date / time	Event	Source · significance
13 May 2024	■ PID complaint lodged with the Ethical Standards Unit	ESU complaint form. Determined a PID 24 Dec 2024 — admitted , Form 24 ¶20
15 May 2024 13:15	“Office Hours and Departmental Directives” email — to the Line Manager + Logan Switch, cc 17 staff + LBH_HR	11 Jun 2026 disclosure, p 6
15 May 2024 15:35	PID email — to MetroSouthESU; CO_Complaints; LBH_HR	11 Jun 2026 disclosure, p 8

Date / time	Event	Source · significance
15 May 2024 15:41	■ M Harrison (Support Officer, HR) forwards from LBH_HR → B Punch, E McGinley, A McNamee — “email from Corey Shephard to ESU and CO Complaints regarding Chloe Taylor”	11 Jun 2026 disclosure, p 7. Routed within HR — not to the Line Manager, not to the Director. Harrison is the officer who refuses pay in 2026
15 May 2024 18:23	The Director directs the Appellant to retract an email inquiring about office hours; the email carries Recall-This-Message instructions	Admitted — Form 24 ¶21. A comparable email by the Line Manager on 9 May attracted no such direction (denied, ¶22)
16 May 2024 11:43	■ E McGinley (A/Senior Consultant, HR) → T Reese and T Smith; cc Punch, Pritchard, McNamee, attaching “Chloe Taylor scc-complaint-form.docx”: “Cory sent his complaint directly to the Ethical Standards Unit who are currently awaiting further documentation... Once ESU have ... finalised their assessment we will reach out to discuss next steps”	11 Jun 2026 disclosure, p 7. This is the operational HR response MSH later tells the Commission does not exist (Item 20)
18–20 May 2024	Request to Together Queensland (H Hayes); union confirms it passed the correspondence to the Health team	Exhibit CS-2
21 May 2024	The Director asks the Appellant to identify the directives about which he had consultation concerns	Form 20 ¶28
28 May 2024	AVAC submitted — a 25-day delay from the payroll instruction	Admitted — Form 24 ¶41

PHASE 4 — INJURY, TERMINATION, REVIEW, DETERMINATION (Jun–Dec 2024)

Date / time	Event	Source · significance
18 Jun 2024	■ ONSET OF INJURY — Major Depressive Disorder with anxious distress	Amended Form 9A. WCRA s 32(1): employment must be a significant contributing factor
after 30 Jun 2024	■ Fatigue risk management implemented at Logan Switchboard, “in connection with an organisational change related to the reporting lines”	MSH's own words, Item 5, 5 Jun 2026 letter. Twelve days after the injury
12 & 16 Jul 2024	Required to attend meetings convened by management while on certified leave	Form 20 ¶42
30 Aug 2024	CCC complaint	Referred back to MSH 22 Nov 2024
8 Sep 2024	Work Capacity Certificate signed (Dr Hawes)	First certificate for the injury
8 Oct 2024	Employment terminated on the basis of “abandonment of employment”	Form 20 ¶43. Reinstatement application TD/2024/110, stamped 25 Oct
24 Oct 2024	■ Review Decision 69983 — the Regulator's own Reviewing Officer finds the 7-hour break “amounted to unreasonable management action” and is satisfied employment was a significant contributing factor	Contents admitted — Form 24 ¶37, relevance reserved on the de novo
22 Nov 2024	CCC refers the complaint back to MSH	PID track
24 Dec 2024	■ J Loader, Director ESU, determines PID 24-ESU-1130	Admitted — Form 24 ¶20. s 65 PID Act protection; order 6 of the draft order

PHASE 5 — REINSTATEMENT AND THE GRADUATED ARRANGEMENT (2025 – Jun 2026)

Date / time	Event	Source · significance
(late 2024 / early 2025)	■ DATE TO SUPPLY — reinstatement following TD/2024/110; returned directly under the same Director and Line Manager	Application stamped 25 Oct 2024. The actual return date is not in the repo
■ TO SUPPLY	Relocation / isolation to another office	Raised by Cory 5 Aug 2026. Not evidenced in any document held. The 8 Apr 2025 Roberts email is NOT it (it records Cory in the security office offering to meet). Needs date + source before any use
8 Apr 2025 14:19–14:21	Reinstatement-process exchange with J Roberts, A/Director HR Business Partnering — Cory offers a face-to-face meeting; Roberts is in the Administration offices and will find a room	Pack 05
7 Apr 2025 → 14 Jun 2026	■ Fourteen months of reduced-hours work, evidenced by payslips	Contradicts “unable to accommodate a graduated return to work”
■ TO SUPPLY	An additional full-time employee engaged in Switchboard, and subsequently removed	Raised by Cory 5 Aug 2026. Not documented in the repo. Needs dates, the position, and the source. Goes to whether the service could accommodate hours — and to the “unable to accommodate” statement

Date / time	Event	Source · significance
■ 12 Mar 2025	■ RESTRICTED . Confidential disclosure to the Director, Corporate Services of a personal crisis, with court documentation; request for Domestic and Family Violence leave under PSC Directive 03/20	Source: Cory's complaint of 4 Oct 2025 (Attachments A and B). Internal only. Do not reproduce the detail.
■ 28 Mar 2025	■ RESTRICTED . Management responds that the leave may not be available, on the basis of how he is characterised in a court matter	4 Oct 2025 complaint (Attachment C): described as “factually incorrect”, contravening the Directive, and contrary to advice he had received. ■ The characterisation itself is NEVER to be voiced forward — discipline rule 10
28 Mar 2025	Hughes correspondence citing Directive 03/20 , HR Policy C73, HR Policy E4	None of those policies held; health.qld.gov.au returns 403
(from ~Mar–Apr 2025)	■ “Punitive performance monitoring” begins — attendance logged instance by instance	Cory's own contemporaneous words, 4 Oct 2025 complaint ¶2. The logging FOLLOWS the confidential disclosure
27 Aug 2025	■ Cory proactively offers Hughes' office documentation before a scheduled meeting. The meeting is cancelled immediately afterwards	Attachment E. Later relied on against him — see 10 Sep
8 / 10 Sep 2025	■ ■ Hughes attendance letter — 34 occasions , initiating a performance improvement process, and asserting that Cory's actions caused meetings not to proceed	Repo file dated 8 Sep ; the complaint dates the letter 10 Sep — ■ reconcile. The last time attendance was formally raised. Not raised since. Attachment F
29 Sep 2025 ~15:00	Immediately after his shift, the Line Manager emails both his personal and work addresses “to follow up to see if I understand the on-call process”	4 Oct 2025 complaint ¶3 — “intrusive and inappropriate”. The same on-call formulation reappears in 2026
3 Oct 2025	Formal written request for review to the A/Director, HR Business Partnering, concerning a process initiated by the officer who later signs the 31 Jul 2026 RFMI; union copied	Recorded at Part 2(d) of the 3 Aug 2026 letter to the Chief Executive
4 Oct 2025 12:43	■ ■ FORMAL REQUEST FOR REVIEW to J Roberts, cc H Moran — “Performance Management Process and Handling of Confidential Disclosure”. Seeks suspension of the performance process, an independent review of the handling of the confidential disclosure and the leave request against Directive 03/20, a formal audit and correction of the leave balance “improperly coded” , and an impartial HR intermediary	■ Cory raised every element himself, in writing, to HR, with the union copied — eleven months before the 2026 exclusion. ■ Contains restricted material

■ ■ THE MATERIAL SUPPLY CHAIN — MSH → THE REGULATOR (Jan 2024 – Jun 2026)

Date / time	Event	Source · significance
14 Jan 2024 08:06	Taylor → Reese, “Urgent Leave and Roster Update for Sunday, January 14th”: reports Cory unable to attend the 0700–1500 shift on 15 minutes' notice, that she called another staff member in, and attaches his text messages (IMG_0973, IMG_0974)	The texts disclose a family police matter concerning his sister, then 15. ■ Cory had NO party status — neither aggrieved nor respondent (corrected on his instruction 31 Jul / 2 Aug 2026). Wholly separate from the Feb–Mar 2025 matter
1 Jul 2025 10:03	■ Taylor forwards the 14 Jan 2024 chain TO HERSELF , carrying IMG_0973 and IMG_0974	Sixteen months later. The retrieval step
4 Jul 2025	Medical-records Form 29 signed by a Senior Registry Officer (Respondent's own Response ¶23)	■ Issued in the proceeding ⇒ r 24(1) required service on each other party. Never served on Cory. See ATT27 and confirmed-record
10 Jul 2025 14:48	■ ■ TAYLOR → MATHESON (Senior Appeals Officer, OIR), subject “WC/2024/227 ... Request for documentation”, marked High importance , attaching eight items — Communication Book Update · Increase of hours and Workplace issues · Urgent Leave and Roster Update for Sunday January 14th (carrying the text images) · Line Manager addressing Pay Concerns · Validation of Claims · Office Hours and Departmental Directives · Respiratory Nurse Educators	■ The private family-matter disclosure is supplied to the Regulator by the Line Manager , in answer to a request about lateness. Over-supply: the material has no connection to any pleaded workplace event
~before 16 Jul 2025	Regulator receives the GP records from Our Medical Ashmore	Exhibit A5. Response ¶23
14 Jul 2025	Matheson emails Cory directly saying she had “received last week” documents	Notice ¶32. Admitted as sent in error — should have gone to his solicitors; Respondent says the medical records were not yet in its possession
22 Jul 2025	Regulator serves the unredacted GP records on Cory's former solicitors	Notice ¶30, admitted . Not notified the solicitors had ceased acting until 29 Jul 2025
13 May 2026	■ Regulator's amended SOFC ¶8: does not admit the allegations “ because medical records identify a past medical history of anxiety ”	■ The supplied material lands in a file running a pre-existing / non-work line. This is why the over-supply matters
11 Jun 2026	Regulator discloses the 15–16 May 2024 HR correspondence	Exhibit CS-4. The disclosure that falsifies Item 20

■ THE QIRC FILE — PLEADINGS, ADMISSIONS AND SUBMISSIONS

Date / time	Event	Source · significance
18 Jun 2024	Injury. Claim → rejected → review	WCRA s 32(1): employment must be a significant contributing factor. ■ NEVER “major” — the 2013 test was repealed in 2019
24 Oct 2024	■ Review Decision 69983 — the Reviewing Officer finds the 7-hour rostering “amounted to unreasonable management action” and is satisfied employment was a significant contributing factor	■ Admitted as a DOCUMENT, persuasive, NOT binding (Notice ¶37 / Resp ¶34): relevance reserved because the appeal is de novo. Do not overstate it as conclusive
(2024–25)	Appeal filed — WC/2024/227, s 550(4) WCRA, Commissioner Dwyer	
Jul 2025	Regulator's Statement of Facts and Contentions (Form 9C) — original and the 13 May 2026 version	`documents/2025-07_Regulator_SOFC_Form9C_original.pdf`; served via Saines 22 Jul 2025
Aug 2025	Form 35 — withdrawal of Saines Legal (P Conrad) . Self-represented from this point	`documents/filings/2025-08_Form35-Withdrawal...`
18 Feb 2026	■■ FORM 24 — Response to the Notice to Admit Facts	The admissions the whole case now rests on. See the ledger below. ■ Cite in NOTICE numbering — Resp ¶N ≠ Notice ¶N after ¶25
17 Feb 2026	Counsel unavailability; the mention moves 26 → 27 Feb	Willson
27 Feb 2026	Mention — Willson appears	
13 Mar 2026	s 552A conference — Willson appears	
7 Apr 2026	Mention — Willson appears; the five-week response window is set	Anchors the Respondent's amended SOFC to 13 May — exactly 35 days after the amended 9A
8 Apr 2026	■ AMENDED FORM 9A — Statement of Facts and Contentions (the Neville pleading, Stressor 3(b))	Stressors: 1 course of management conduct (a)–(g) · 2 remuneration · 3 statutory fatigue breach · post-injury aggravation. ■ MSH says it never received the amended 9A — 5 Jun objection, opening paragraph
22 Apr 2026	Form 29 — Notice of Non-Party Disclosure sealed ; served on Matheson and Thorburn	20 Items. From this date MSH knows the categories sought
13 May 2026	Regulator files its amended SOFC	Willson does not appear at the next listing
22 May 2026	Mention — MSH non-attendance noted; MSH directed to object by 4pm Fri 5 Jun	
(undated)	Outline of Submissions	`documents/WC2024227_Outline_of_Submissions.pdf` — ■ confirm the filing date
18 Jun 2026	Form 4 + Form 20 + Form 21 certificates + draft order (v2)	Filed and sealed 23 Jun. Draft order 3 = verification affidavit by the CE or a delegated Director ; order 6 = s 580 non-publication of the PID
1 Jul 2026 12:16	Calderbank #2 served on Matheson and the OIR appeals registry	s 545 IR Act costs consequence. Rejected 16 Jul 2026 15:54
24 Jul 2026	Appellant requests the Respondent's list of documents	Still outstanding
30–31 Jul 2026	Without-prejudice “material development” letter to Matheson	
3 Aug 2026 07:17	Matheson replies on the disclosure list and the NNPD commitment	

■■ FORM 24 LEDGER (18 Feb 2026) — WHAT IS ADMITTED

Notice ¶	What was pleaded	The Respondent's answer
¶1	Rostered to finish 23:00 and recommence 06:00 — a 7-hour break	■ ADMITTED
¶3	Award / FRMS minimum 10 hours , or 8 only by written agreement	■ ADMITTED
¶5	The fatigue grievance; Reese's email acknowledging “a rostering error ... accidentally made by Chloe with regards to night shifts”	ADMITTED
¶6	The Line Manager removed a page from the communication book	ADMITTED — but not that it bore Cory's handwriting (¶7, “no copy of the page”)
¶8	The Switchboard procedure fact — “there was a procedure in place for this to occur”. The Form 20 ¶6 cites Para 8 for the patient-safety criticality admission	ADMITTED ■ PINPOINT CHECK — confirm the criticality words sit at Notice ¶8 before relying on them
¶14	The communication book / 6 June 2023	ADMITTED
¶17	QH-POL-248 Union Encouragement Policy requires a “positive, supportive role”	ADMITTED — policy wording only
¶20	■ The ESU determined the complaint to be a PID	■ ADMITTED

Notice ¶	What was pleaded	The Respondent's answer
¶21	The Director directed retraction within 48 hours of the PID	ADMITTED — but “ no correlation between the two events ”; a further retraction email 21 May; “all emails to be read as a whole”. Event admitted, causation contested
¶25	No Form 29 was served on the Appellant before the Respondent obtained his medical records	ADMITTED — with the defence “no requirement ... pursuant to s 64D”; denies breach of r 64E
¶37	■ The Review Decision and both findings	CONTENTS ADMITTED, relevance reserved (de novo)
¶40	Payroll instructed the Line Manager to “submit an AVAC to correct these shifts”	ADMITTED
¶41	The AVAC was not submitted until 28 May 2024 — a 25-day delay	ADMITTED (delay admitted; justification contested)
¶46	The Line Manager's 21 May “waiting payroll confirmation” email	ADMITTED

■ FORM 24 LEDGER — WHAT IS DENIED OR NOT ADMITTED (the live contests)

Notice ¶	What was pleaded	The Respondent's answer
¶2	The 7-hour roster as unreasonable management action	■ DOES NOT ADMIT — for the Commission. Never tag ¶2 “admitted”
¶4	That there was no written agreement	■ DENIED — “in June 2020 the Appellant signed an agreement allowing an 8 hour break”. LIVE CONTEST — the single most important denial in the case
¶9 / ¶19	Failure to facilitate the delegate appointment for over 9 months	■ DENIED on three grounds (no request; support given; information provided). Stressor 1(g); Item 19's target
¶12	The communication book characterisation	DENIED — the Line Manager called it “a professional tool”
¶16	Yelling as not reasonable management action	DENIED — “characterisation is for the Commission”
¶18	The delegate-intention text as notification	Sending admitted ; characterised “ not a formal notification ”
¶22	The comparator email sent by the Line Manager on 9 May attracting no direction	■ DENIED — “circumstances were different”. The disparate-treatment fact Items 8–10 target
¶¶42–45	Pay disparity	■ DENIED — “the comparator does not represent a true comparator ... the roster was equitable ”. ■ THE contested fact Items 8/9/10 attack. Anchor relevance here
¶¶47–49	Delay and a false or misleading statement	DENIED — “needed payroll confirmation”; “not false or misleading”; “no lack of diligence”
¶50	The Review Unit decision and a misleading statement by the Line Manager	Contents admitted, relevance reserved; does not admit a misleading statement

PHASE 6 — THE FORM 29, THE OBJECTION AND THE 64G (Feb–Jun 2026)

Date / time	Event	Source · significance
17 Feb 2026	Counsel unavailability; mention moved 26 → 27 Feb	Willson
18 Feb 2026	Form 24 response and email communication	The admissions relied on throughout
27 Feb 2026	Mention — Willson appears	Appearance pattern
13 Mar 2026	s 552A conference — Willson appears	
7 Apr 2026	Mention — Willson appears ; the 5-week response window is set	
8 Apr 2026	Amended Form 9A filed (the Neville pleading, Stressor 3(b))	Respondent's amended SOFC due 13 May — exactly 35 days
22 Apr 2026	■ FORM 29 — Notice of Non-Party Disclosure sealed ; served on Matheson (Affected Party 1) and Thorburn (MSH)	20 Items. From this date MSH knows precisely which categories are sought
30 Apr 2026 15:59	■ L Griffin, Director Employment Relations MSH HR, forwards MSH correspondence to the QIRC Registry , copying the Appellant “by way of service”, cc Ruttan, Matheson, Tribunal Matters	HR's ER Director personally effecting service in the appeal
5 May 2026	Medical information requested from the Appellant	Referred back to in the 26 Jun email
13 May 2026	Regulator files its amended SOFC	

Date / time	Event	Source · significance
22 May 2026 13:45	Mention. Commissioner notes the non-attendance of the Health Service ; MSH directed to provide objections by 4:00pm Friday 5 June. Willson does NOT appear — first listing after the amended SOFC	Registry email to Cory, Matheson, OIR-Appeals, Ruttan, Tribunalmatters (QH central) , Thorburn, Griffin
5 Jun 2026	■ MSH OBJECTION K-LM26/729 — signed Noelle Cridland, Chief Executive ; enquiries Myla Ruttan, Principal Lawyer. Complied 6, 11, 12, 13, 15, 16. Non-existence 1–2, 3(c), 4, 5, 7, 14, 20. Objections 3(a), 3(b), 8, 9, 10, 17, 18, 19	Key admissions: complaints “managed solely via email or verbally ”; Switchboard non-clinical so no FRMS; fatigue management after 30 Jun 2024 ; “no consequential changes”; SPOK not retained ; personal mobile outside the retention policy; 20,006 headcount. States three times that compliance requires CE approval
11 Jun 2026	■ The Regulator discloses 10pp — the 15–16 May 2024 correspondence, the leave-form walkthrough and the ESU PID form	Exhibit CS-4. Falsifies the Item 20 answer ; p 7 carries Harrison and McGinley
18 Jun 2026	Form 4 and Form 20 affirmed . ¶47 answers the two-shift premise; ¶49 quotes the objection back; ¶50 seeks SPOK verification on oath; ¶52 uses the Regulator’s disclosure against Item 20	Draft order 3 — verification affidavit by the CE or a delegated Director
23 Jun 2026	64G filed and sealed	
25 Jun 2026 08:31	■ SERVED ON M RUTTAN — Postmaster delivery receipt	

PHASE 7 — ■ THE LOCKOUT AND WHAT FOLLOWED (26 Jun – 31 Jul 2026)

Date / time	Event	Source · significance
26 Jun 2026 10:42	■ THE ORIGIN DOCUMENT . C Taylor, “Cory Shepherd — ECC”: opens with a welfare check and the EAP brochure; notes the 5 May request outstanding; then — “ Until we receive appropriate medical clearance, including a completed Employee Capacity Certificate (ECC), we are unable to facilitate your return to work... As your employer, we have a legal obligation under section 19 of the Queensland Work Health and Safety Act 2011 ”	■ s 19 is a duty owed TO the worker, operating “while the workers are at work” . Cited before anything was challenged — MSH’s own first, unpressured characterisation of its authority. One day after service on Ruttan — recorded, never asserted as a cause
29 Jun 2026	Appellant texts the Line Manager regarding a doctor’s appointment	Referred to in the 2 Jul email (misdated there as “Monday 29th July”)
1 Jul 2026	Doctor’s appointment	
2 Jul 2026 14:38	Taylor recycles 26 Jun near-verbatim; adds the 2:00pm Friday 3 July deadline ; “I will process your shifts that you have not worked as Sick Leave”	■ The legal basis is DROPPED — no instrument cited
3 Jul 2026	■ ECC completed by Dr Ma — FIT WITH RESTRICTIONS ; “continuation of existing arrangement... worked and tolerated... without deterioration”. To Injury Management 2:30pm; resubmitted 3:06pm	MSH’s own stated condition is satisfied. The bar does not lift . Invoice 574370
3 Jul 2026 15:18	Appellant replies to Taylor on the ECC and leave type	
7 Jul 2026 10:54	L Forrest: the ECC “has now been reviewed and carefully considered”, but “the Health Service does not have sufficient information to understand the nature of these matters or assess whether they present any psychosocial hazards”. Seven calendar days, consequence attached	■ Invokes “obligations under work health and safety legislation” — no Act, no section . A new condition replaces the satisfied one
13 Jul 2026	■ WAGES CEASE	Accrued leave debited without agreement — IR Act s 33 requires agreement or 8 weeks’ notice
15 Jul 2026	M Harrison: pay refused ; interim duties declined in any capacity ; “unable to commit to a timeframe”	■ NO INSTRUMENT CITED . Against G03 cl 1.1 and QH-IMP-401-5 (suitable duties “actively sought” and “made available wherever reasonably practicable”)
~15 Jul 2026	■ MSH to the insurer: “ currently unable to accommodate a graduated return to work ”	Surfaced via the ART letter of 4 Aug. Contradicted by 14 months of payslips and MSH’s own ECC
15 Jul 2026	Together — urgent industrial referral (Heath / Moran)	“Still reviewing / industrial team” 17 Jul
16 Jul 2026 15:54	Matheson rejects Calderbank #2	Served 1 Jul 12:16
24 Jul 2026	Appellant requests the Respondent’s disclosure list	Still outstanding
28 Jul 2026 17:39	Appellant: incorrect application of EB12, the Award and HR policies	
29 Jul 2026 16:10	Harrison, EAF reply	■ The WHS Act returns — first citation since 26 June
30 Jul 2026 14:33	Harrison holding reply; “unable to guarantee my return”	No instrument . All EB12/Award/policy text in that PDF is the Appellant’s own 28 July letter quoted beneath

Date / time	Event	Source · significance
31 Jul 2026 11:43	■ S Hughes, Director Corporate Services — Request for Medical Information , nine questions to the GP, written in the first person of the decision-maker. Q3 asks whether fit to return “under the existing reporting arrangements, including working with and reporting to [the] current line manager”	Cites HR Policy G3 and WHS ss 17, 19. cc notes@solv.com.au — a third-party system
31 Jul 2026 15:15	Harrison — reimbursement practice-confirmation gate	

PHASE 8 — THE PACKAGE AND THE RESPONSE (3–5 Aug 2026)

Date / time	Event	Source · significance
3 Aug 2026 07:17	Matheson replies on the disclosure list and the NNPD commitment	
3 Aug 2026 11:38	■ FOUR EMAILS SENT . RFMI response + allocation · cl 10.3.2 request (21-day clock → 24 Aug) · cl 1.11 Stage 1 dispute · s 89 letter to the Chief Executive	Part 2A closes the 7 July information gap in four numbered items and records that ss 47–49 consultation “has not occurred at any point since 26 June 2026”
3 Aug 2026 12:45	■ MSH Executive Services: “I have been asked by Noelle Cridland, Health Service Chief Executive , to acknowledge receipt”	67 minutes . Personal knowledge documented and dated — s 27(5)(d) WHS Act
4 Aug 2026 13:35	■ Taylor, Stage 1 acknowledgement — admits cl 1.11.2(a) 24 hours “not achieved”	An admission against interest, volunteered
4 Aug 2026 16:40	ART / J Zappia — overpayment review and employer disclosures	Surfaces the “unable to accommodate” statement
5 Aug 2026 07:30	■ Stage 1 response sent (v16) — seven questions; written answers sought by 10 August	
5 Aug 2026 11:45	The clinic telephones Harrison regarding the invoice	Third-party proof of cooperation
5 Aug 2026 16:12	QSuper reclassifies 25–31 May as a graduated return to work payment	The scheme funds the arrangement MSH told the insurer it could not accommodate
5 Aug 2026 20:53	Occupational psychology provider — indicative proposal, \$10–30k	Independent assessment, to be commissioned and funded by the Health Service

PHASE 9 — THE FORWARD CALENDAR

Date / time	Event	Source · significance
6 Aug 2026	Union industrial officer returns; submission and delegate email to go	Drafted
7 Aug 2026	■ ■ 64G MENTION BEFORE COMMISSIONER DWYER	Watch: whether the first word is “consent”; who appears for MSH; whether Willson reappears. Press verification on oath — if resisted, ask that it be reserved, not refused
10 Aug 2026	Stage 2 referral (does not self-execute) · RTI + IP Act applications · written answers to the seven questions fall due	The IP Act application is the only route to the 2026 employment file — the Form 29 date ranges stop at 30 Jun 2024
17 Aug 2026	Stage 2 concludes (if referred 10 Aug)	cl 1.11.2(b) — the employer shall arrange a conference
24 Aug 2026	■ cl 10.3.6 DEEMED REFUSAL	Self-executing. Running now

■ ■ VERIFIED FROM SOURCE, 5 AUGUST 2026

Date / time	Event	Source · significance
Form 24 ¶8	■ PINPOINT CONFIRMED . Notice ¶8 IS the patient-safety criticality statement; Response ¶8 “ admits the facts contained therein ”	■ But ¶9 is DENIED — the criticality is admitted, the consequence of the removal is not
Form 24 text layer	■ pdftotext DROPS every exhibit reference, date and quoted phrase . Render with pdftoppm	Added to CLAUDE.md source-integrity rules. Full register at FORM24-VERIFICATION-5AUG.md
Form 24 exhibits	Sixteen exhibits recovered. Only A1, A5 and B1 confirmed held . Eight not held — C2, D1, D2, E3, F2, F3, H1, I2	■ ¶¶42–45 (pay disparity) rest on D1, not in hand . I2 the Respondent holds and we do not . FORM24-EXHIBITS-AND-ADMISSION-LAW.md
Admissions	“ For this proceeding only. ” None of them operate in the employment track, an AD Act complaint, or before the CE	“Does not admit” ≠ “denies as untrue”. ¶4 is their affirmative case — make them produce the June 2020 agreement
■ r 24(1)	■ THE EARLIER “NO DUTY TO SERVE” CONCLUSION WAS WRONG . r 24(1): the party by or for whom a document is filed or issued in a proceeding must serve it on each other party	The 4 Jul 2025 Form 29 was Registry-issued ⇒ r 24(1) applied. r 64D(1)(a)’s “other than a party” avoids duplication, not exemption. ■ They will run r 24(2)(b); their ¶25 never mentions r 24

Date / time	Event	Source · significance
■ r 64B(2)	THRESHOLD PROHIBITION: a party may not require production where another reasonably simple and inexpensive way of proving the matter is available	He was a party, represented, and they are his own records. Never answered by the Respondent
r 64E(2) + 64F	LIVE REMEDY: a person affected who was not served may object at any time with leave ; an objection operates as a stay	Grounds: relevance · privilege · confidentiality · effect on any person · should have been served
r 64I	The party pays the non-party's reasonable expenses of production	■ Cuts against MSH's expense objections at Items 3(a), 3(b), 8, 10, 19 — cost is compensable, not a reason to refuse
April 2025 stats	■■■ 269–444 calls per shift, averaging 360 , while working at 29.3% of full-time	The reduced hours cut the NUMBER of shifts, not the INTENSITY of each one. The within-shift fatigue mechanism, proved from his own data
Payslip analysis	FY2025–26: 150.86 work days over 26 fortnights (5.80/ft against a full-time 10); 34.33 unpaid days ; gross \$82,664.20	■ STOPS at the fortnight ending 7 Jun 2026. Obtain the payslips for pay dates ~1 Jul and ~15 Jul 2026 — they contain the last-worked-shift answer
26 Mar 2025 payslip	\$29,390.05 prior-period gross adjustment carrying Term loading, RL_Term, Life Benefit ETP codes; plus \$5,000 non-taxable allowance adjustment	■ Material to the ART overpayment review — termination package vs back pay changes what is treated as income for a period
Outline of Submissions	Filed 1 May 2026 , opposing MSH's r 64E extension	■ NEW ACTOR: the Chief People and Partnerships Officer , to whom Thorburn forwarded the Form 29 at 17:26 on 22 Apr 2026, eighteen minutes after service . Thorburn = Executive Director, Clinical Governance, Risk and Legal

OUTSTANDING

Date / time	Event	Source · significance
■ OPEN	The last shift actually worked before 26 June 2026 is unverified. Settle from the payslips and roster	CLAUDE.md immediate task 6. Decides how the whole chronology reads
■ NOT SENT	Preservation request. Form 29 categories, employment records since 26 Jun, custodian mailboxes, the Appellant's own QH mailbox, and Solv	Send before 7 Aug. Costs nothing, cannot be objected to
■ UNKNOWN	Whether Cory.Shepherd@health.qld.gov.au remains accessible	Taylor cc'd the personal address on both 26 Jun and 2 Jul

Compiled from source documents. Admissions are cited to the Form 24; MSH's statements to the objection of 5 June 2026 (ref K-LM26/729); the 15–16 May 2024 entries to the Respondent's disclosure of 11 June 2026.